

Senso Comune Gallery

Design, commerce and compliance report

Prepared for the artist

2026-09-17

This report documents the design and build of a small gallery site for a solo painter, and the commercial and regulatory decisions it rests on. It is written to be acted on: every finding carries a cost, an effort and the specific change it implies. Where the evidence does not support a recommendation, the report says so rather than rounding up.

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1 Summary

1.1 What this is

A site selling six unique paintings, priced \$60–\$440, run by one non-technical person resident in mainland China, addressed equally to international and domestic buyers.

That last sentence contains most of the difficulty. A gallery site for six works is an afternoon's work. A gallery site for six works that takes money across the Chinese border, ships physical objects internationally, satisfies two consumer-law regimes at once and loads acceptably on both sides of the Great Firewall is not.

Reading it. Part 1 is this summary and the decisions already taken. Part 2 covers the design. Part 3 covers money — paying, shipping, duty, tax. Part 4 covers law and accessibility. Part 5 is the build. Part 6 lists what is still unresolved, which is the part to read before spending anything.

1.2 The seven findings that would have sunk it

Table 1: Blocking findings, in the order they must be dealt with

Ref	Finding
A-01	Every call to action was <code>#A19E97</code> — 2.67:1 , failing both the body-text and the large-text floor. No font size rescues it.
B-01	Stripe is unavailable to a mainland-China seller — the whole account, not merely PayPal. Airwallex excludes mainland entities from card acquiring and opens no individual accounts at all.
B-03	<code>vercel.app</code> and <code>workers.dev</code> measure 100% blocked from mainland China. <code>pages.dev</code> measures 0%.
B-05	A unique pre-existing painting gets no returns exception under either Chinese or EU law. Uniqueness is not personalisation.
B-06	Instagram was the only contact channel. It is blocked in mainland China, and EU law requires an email address regardless.
B-08	China-origin paintings are not duty-free into the United States. Section 301 adds 7.5% and the \$800 de minimis exemption is suspended.
N-01	A one-page site cannot link to one painting, which is the site's main acquisition motion.

1.3 Decisions taken

Settled

Launch as an individual, with the Hong Kong entity reachable as a configuration change rather than a rebuild. Under CNY 100,000 annual turnover there is no business-registration requirement, no foreign-exchange quota consumed, no balance-of-payments filing and no VAT.

Host on Cloudflare Pages. The only option with no bill, no pause, no terms problem and no ICP filing.

Seven documents per language, not one. The editorial scroll is kept; `@view-transition` restores the single-page feel in two lines of CSS.

Self-host the fonts. 79.8 KB for both families, built from the variable originals.

Adopt the artist's sage palette, with text moved onto cream.

1.4 Cost

Table 2: Running cost of the recommended build

Item	One-off	Annual
Hosting (Cloudflare Pages)	\$0	\$0
Domain (registrar at cost)	—	\$11
Fonts, licensing (SIL OFL)	\$0	\$0
Analytics	\$0	\$0
Photography, phone build	\$6–25	—
Photography, full build	\$360–400	—
Copyright registration, batch	\$85	—
Total, minimum viable	\$6–25	\$11

Payment processing is separate and depends on the entity decision; see Section 3.1.

2 Design

2.1 Where the design came from

The artist supplied a nine-page draft and, later, a live mockup with a revised palette. Both were treated as the brief. The work here was not to redesign but to find where the drawing

and the medium disagree — and they disagreed mostly about contrast.

2.2 The palette

The artist's mockup moves the site from white to a sage-green world: a dark brown masthead bar, warm brown text, terracotta, and cream plates behind the paintings. Two of her decisions were already right and are kept exactly as drawn — the warm browns, and a **filled** terracotta button.

	Bar / masthead #3A2B22		Her dark brown. Sand on it: 11.45:1
	Field / sage #969B7D		Frames the sheet. Carries no text
	Paper / reading #F3EBDD		All foregrounds solved against this family
	Ink / headings #3A2B22	11.45:1	Hers. Warmer than the neutral it replaced
	Body #66594B	5.73:1	Hers
	Sanguine / accent #8B4A3C	5.64:1	Red chalk. The artist chose it by eye
	Muted / captions #69655E	4.90:1	Re-solved; the white-ground value failed
	Rule #8E7B9C	3.25:1	Van Gogh's stated violet. Needs 3:1, not 4.5

Figure 1: The palette as built. Each value is read from the project's token file, not transcribed.

2.2.1 What could not be adopted as drawn

Body text on the sage does not pass, and the accent on sage is worse than the value it was replacing.

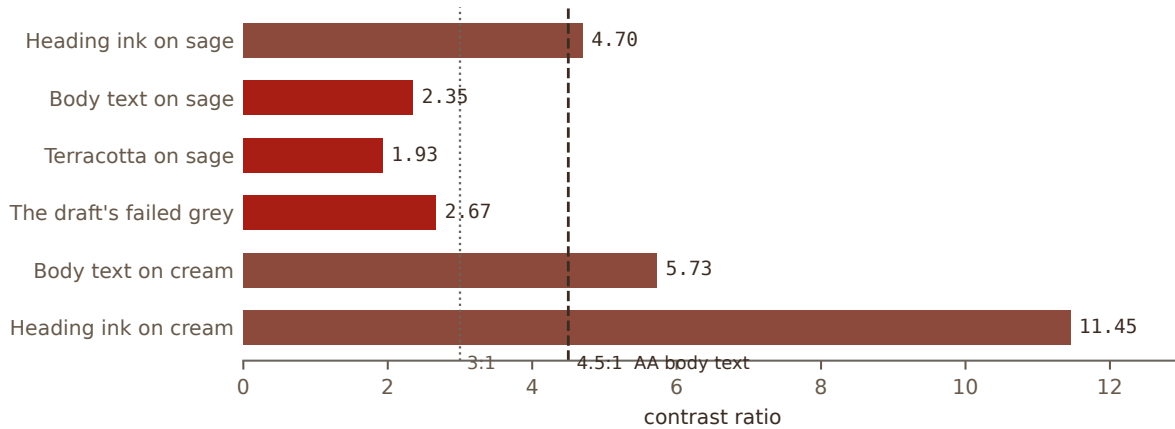


Figure 2: Why the sage carries no text. The three red bars are the artist’s mockup as drawn; the draft’s original failure is included for scale.

The resolution was already in her own mockup

She sets the paintings on light cream plates against the sage. So sage becomes the **field** and cream the **reading surface** — the whole content column is a cream sheet mounted on sage, which is what a gallery does to a work on paper anyway. Her green stays dominant at the margins, the reading happens on cream, and nothing sets text on sage.

2.2.2 The warm-ground trap

#767676 is the canonical “lightest grey that passes on white”. On pure white it passes at 4.54:1, with 0.04 to spare. Warm the ground at all and it fails.

This caught the project three times — twice in tokens written specifically to avoid it. The response was to stop checking by eye: `scripts/check-contrast.mjs` recomputes every token against **the darkest ground it is ever painted on** and fails the build on a regression.

2.3 Typography

Two open-source variable faces, self-hosted: Fraunces and Inter.

Table 3: Font build, measured rather than estimated

Build	Bytes
Fraunces, all four axes	121,124
Fraunces, opsz 14–40, wght 400–700, WONK 1	51,868
Fraunces, opsz pinned	32,500
Inter, opsz 18, wght 400–600	29,856
Total, both families, latin subset	81,724

Two corrections came out of running the build rather than reading about it. The draft sets Fraunces at six optical sizes — 16.0, 16.8, 21.6, 27.2, 30.4 and 38.4 — so the `opsz` axis must stay live; pinning it saves 19 KB and flattens the optical sizing the design depends on. And Fraunces’ `WONK` axis defaults to **1, not 0**; pinning it to 0 changes the letterforms to save 140 bytes.

2.3.1 The scale

Not the golden ratio. The one proportional system in Leonardo’s own hand, on the *Vitruvian Man* sheet, is whole-number fractions of height.

Table 4: Type scale, and how close the artist’s draft already was

Role	Fraction	Computed	Draft used
Hero	1 (the height)	38.4 px	38.4 px
Section heading	less 1/8	33.6 px	30.4 px
Sub-heading	less 1/4	28.8 px	27.2 px
Wordmark	1/6 + 1/4	22.4 px	21.6 px
Body	the unit	16.8 px	16.8 px
Caption	less 1/4	12.6 px	13.1 px

2.4 The two masters

The brief asked for a debt to Leonardo and to van Gogh, carried without ever announcing itself. The test applied throughout: *a visitor who knows nothing should feel only that the site is calm and well made; a visitor who knows the work should feel recognised.*

2.4.1 What was adopted

- **The accent is sanguine.** Red chalk, the medium Leonardo drew in, measures 6.33:1 on white; the oxblood the artist chose by eye measures 6.68:1. They are the same colour. The recommendation was to change nothing and record why.
- **No hard edges.** Leonardo's instruction to paint "*without strokes or lines, in the manner of smoke*" and the Chinese 没骨 ("boneless") tradition of painting without contour are the same idea reached independently. For a Chinese painter addressing both audiences that is a structural principle, not a motif. Section boundaries dissolve rather than rule.
- **The rules are van Gogh's stated violet.** He told Theo the *Bedroom* walls were "of a pale violet"; they read blue today because the red lake faded. The site uses the colour he said, not the colour that survived.
- **Hatching runs his way.** Leonardo was left-handed, so his stroke runs upper-left to lower-right. No text source could be retrieved, so the 43.8° angle is an original structure-tensor measurement of his sheets, validated against a right-handed control.

2.4.2 What was cut, and why

The myth filter

Golden-ratio grid. Unsupported. Illustrating Pacioli's *De divina proportione* establishes that Leonardo drew the solids, not that he composed on the ratio.

"Leonardo invented sfumato", and the word itself. Cennino Cennini described blending shadows like smoke a century earlier, and Leonardo never used the noun — a full-text search of the *Trattato* returns none.

Any yellow as text. Indian yellow is 2.10:1 and zinc yellow 1.53:1. Both are genuine *Starry Night* pigments and both are unusable for anything but a mark inside an image.

Sampling colours off the paintings. The *Bedroom* wall as it survives today is 2.78:1; the *Sunflowers* chrome yellow 2.70:1. Both sit within a hair of the 2.67:1 failure this report opens with.

2.5 The site as built

3 Money

3.1 Paying

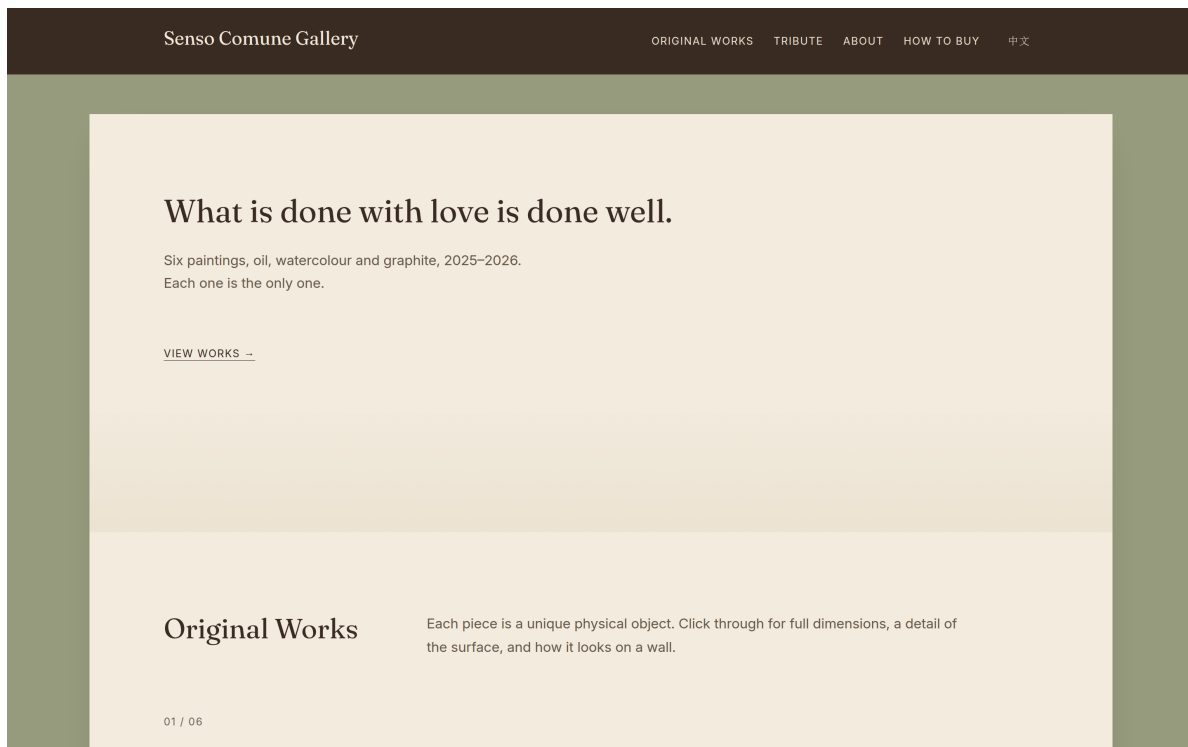


Figure 3: The homepage. Cream sheet mounted on the sage field, dark brown bar. The motto has the hero to itself; the factual line beneath it is generated from the work data and cannot drift.

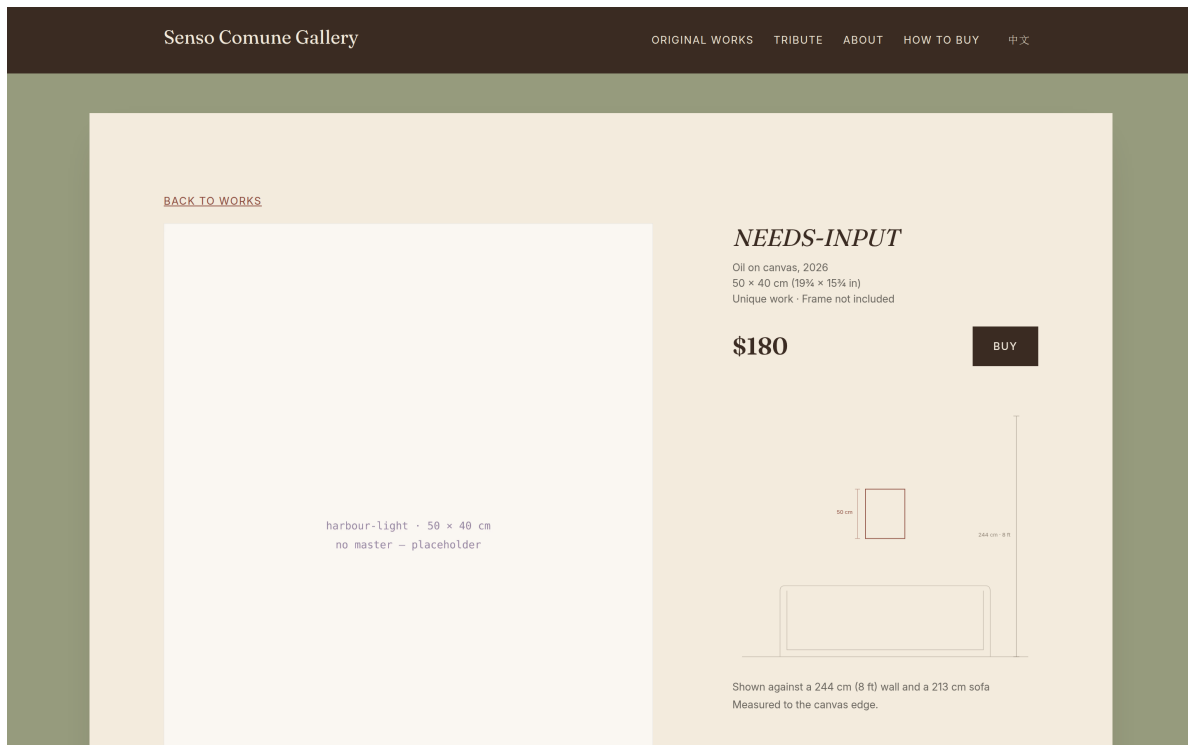


Figure 4: A work page. The price is the boldest element in the block — the single change with the best evidence behind it. The scale diagram shows the painting against a 244 cm wall and a 213 cm sofa, hung at the museum standard of 144.78 cm.

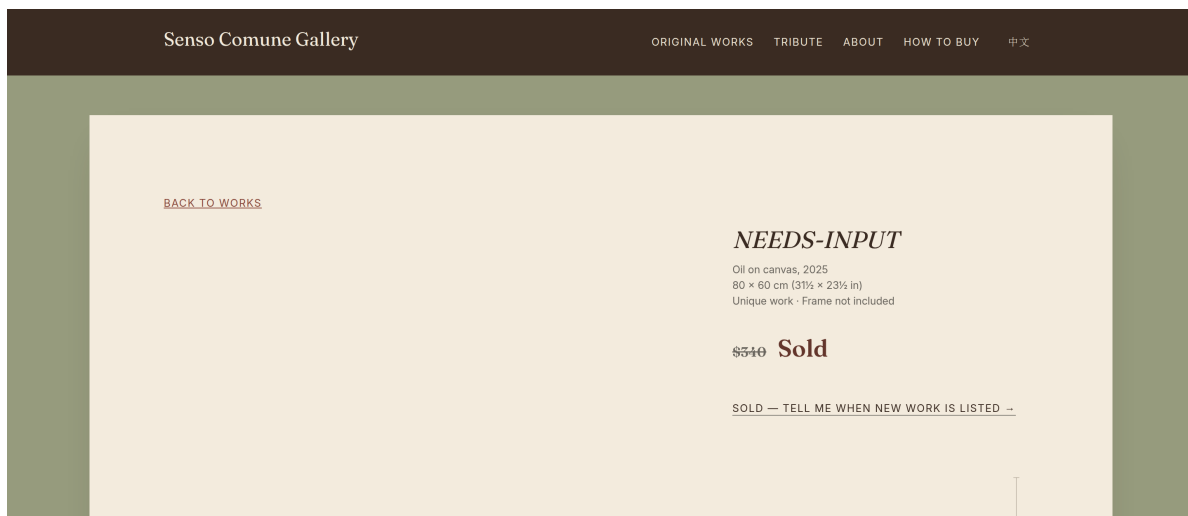


Figure 5: The sold state. The price stays visible as social proof, “Sold” sits at full contrast in the price position, and the call-to-action slot becomes a capture rather than a dead end.

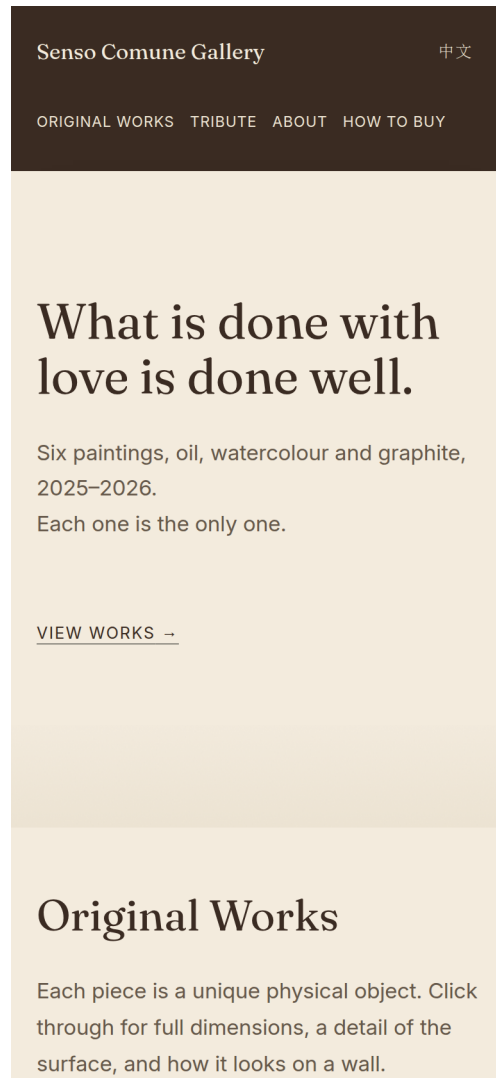


Figure 6: Mobile. The masthead is static below 720 px: at 390 px the sticky version grew to 280 px, a third of the viewport, and broke the scroll padding that the focus-obscured criterion depends on.

3.1.1 The constraint

B-01 · Stripe is not available

Mainland China is absent from Stripe’s supported business countries. Hong Kong, Singapore and Japan are present. This is not the narrower finding about PayPal — it is the whole account.

Airwallex looked like the answer and is more restricted than it appears. A mainland entity can open an account for Global Accounts, foreign exchange and transfers, but card acquiring is excluded in Airwallex’s own Chinese-language terms, and it opens no personal accounts at all.

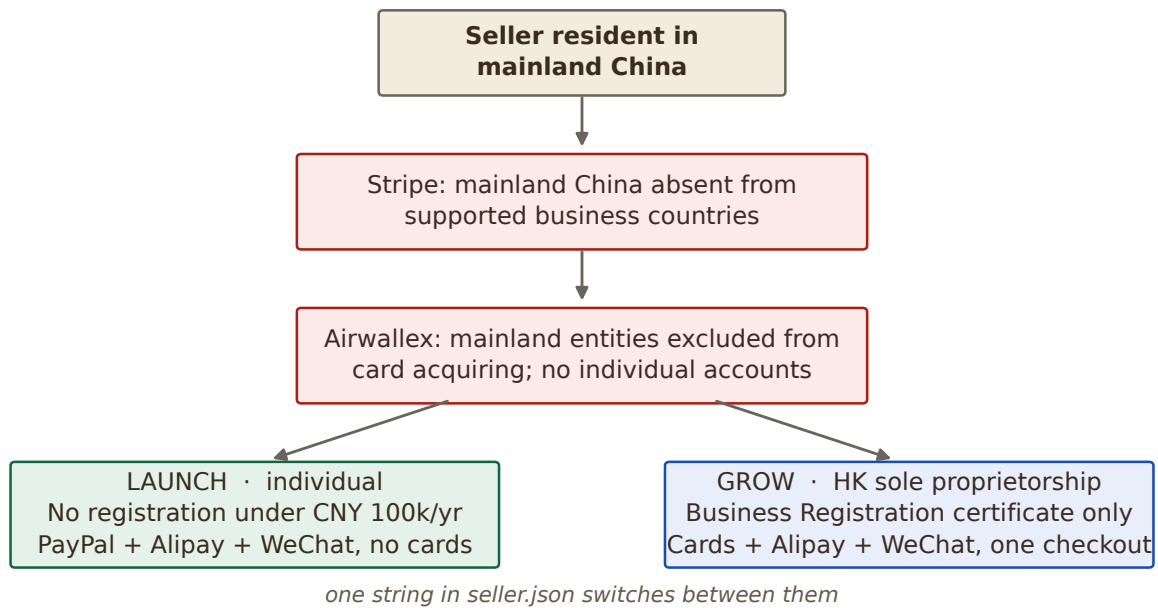


Figure 7: The two routes, and the one string that switches between them.

3.1.2 Route A — launch as an individual

Chinese law is unusually accommodating at this scale.

Table 5: What the individual route does not require

Requirement	Position	Authority
Business registration	Not required under CNY 100,000/yr online turnover	SAMR Order 37, Art. 8 ¶3
FX annual quota	Not consumed — cross-border e-commerce settles outside it	汇发〔2020〕14号 Art. 66(2)
BOP declaration	Not filed — resident individuals exempt at or below USD 10,000 per transaction	汇发〔2022〕22号 Art. 8
VAT	Exempt — monthly sales under CNY 100,000, to 31 Dec 2027	财政部/税务总局2023年第19号

Six works at \$60–\$440 is roughly CNY 19,000 — an order of magnitude below the registration ceiling.

What she must not do

Route sale proceeds as a gift or family remittance; split transactions to stay under a threshold; or use informal currency swaps. The last is私自买卖外汇 under Article 45 of the FX Regulations, and published enforcement puts the penalty on the offender's PBOC credit file.

3.1.3 Route B — a Hong Kong sole proprietorship

A Business Registration certificate is sufficient — no incorporation. That unlocks the free Airwallex plan with no-code payment links, international cards at 3.60% + HK\$2.35, **and Alipay and WeChat Pay** as merchant methods, which is how the domestic half of the audience is served from one checkout.

It also unlocks repatriation: Airwallex supports local CNY transfer for sellers without a mainland registered business whose ultimate beneficial owner is a Chinese national exporting goods from the mainland. That describes this business exactly.

Confirm before incorporating

Airwallex approves its Payments product **separately** from account opening, and reviews the live site as part of that review. The entity list verified covers account opening only.

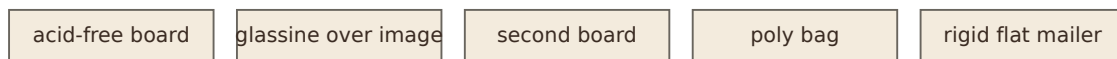
3.1.4 Rejected

Payoneer Checkout is Stripe-powered, excludes mainland China explicitly, and requires monthly volumes above USD 20,000 — roughly 130× this business. **PingPong** and **LianLian** both have real independent-site acquiring, but neither publishes pricing or eligibility and both are sales-led. Do not design around either without a written quote.

3.2 Shipping

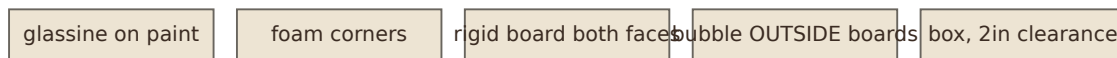
Works on paper

flat, never rolled — rolling cracks the sizing



Stretched canvas

upright, never flat — and never below freezing



Materials run \$25–50 per shipment. Every carrier's artwork declared-value cap sits above this inventory.

Figure 8: How each kind of work travels. The paper rule is the one most often got wrong.

Works on paper ship flat, never rolled

Rolling cracks the paper's sizing and can crease or smear the media. Tubes are a fallback for very large **unstretched** canvas only.

Stretched canvas ships upright, never flat, with the bubble wrap outside the rigid boards so nothing touches the paint. Cold is a real hazard: linseed oil stiffens and can crack below freezing, which matters for winter shipping.

One reassurance worth stating plainly: the much-discussed “\$1,000 artwork cap” does not bind here. FedEx caps declared value on art at \$1,000 or \$9.07/lb, whichever is greater; USPS additional insurance for artwork caps around \$1,000. Every one of those caps sits above this entire inventory.

3.3 Duty and tax at the border

B-08 · The site cannot say “duty-free” to US buyers

Original paintings under HS 9701 carry a **Free** base rate, which is where the belief comes from. For a **China-origin** shipment in 2026 it is wrong.

- **Section 301 List 4A applies.** HTSUS 9903.88.15 imposes **+7.5%** on products of China, and US note 20(s)(i) enumerates **9701.91.00** — contemporary paintings — among the covered subheadings. The exclusion that once covered paintings is expired.
- **De minimis is suspended.** The \$800 exemption no longer applies, so every painting needs a customs entry.
- **The IEEPA tariffs are gone** — struck down and revoked in February 2026 — and artworks were separately carved out of them as “informational materials”. That relief does **not** extend to Section 301.

A \$300 painting, China origin, delivered to the United States



Figure 9: What a US buyer actually pays on a \$300 painting.

Table 6: Import treatment by destination

Destination	Duty	VAT / tax	Confidence
United States	+7.5% Section 301	—	Verified
United Kingdom	0%, ERGA OMNES (origin-neutral)	Reduced art rate	Verified
European Union	0% expected	Reduced art rate per member state	Unverified — see Section 6

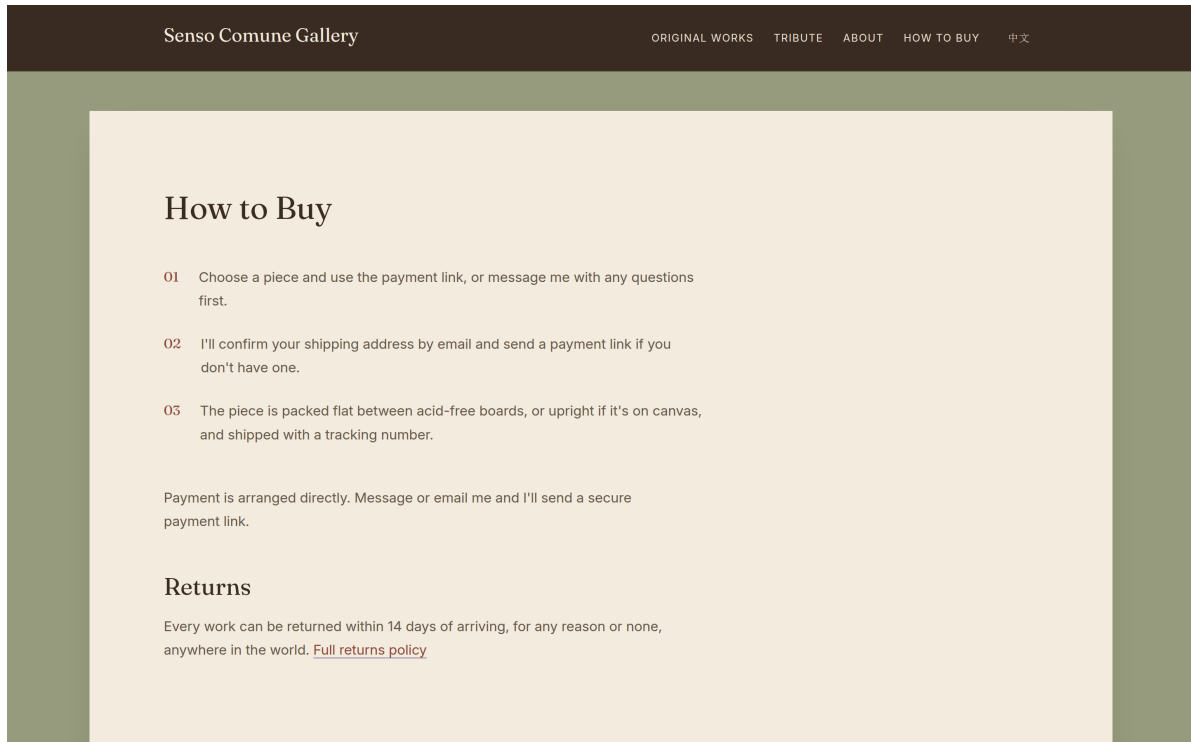


Figure 10: The How to Buy page, which puts the duty figure in front of the buyer before they commit rather than after.

3.4 The donation pledge

The draft said “10% of each order goes toward research”, which is a per-transaction consumer promise. The site now says “*I personally donate 10% of my profits each quarter*” — a personal pledge, which is a materially different representation.

What protects the pledge is not the wording but the receipts: a public page with the recipient named, the basis stated, the cadence disclosed, and a running cumulative total.

4 Law and access

4.1 Returns

B-05 · Returns cannot be refused, in either market

China. Consumer Protection Law Art. 25 gives a seven-day no-reason return on distance sales. The exceptions are a **closed list** — SAIC Order 90 Art. 6 excludes only goods made to the consumer’s order, perishables, unsealed digital media and delivered periodicals. The 2024 Implementing Regulations Art. 19 then expressly forbid a trader expanding that list, and ban pre-ticked exclusion.

European Union. CRD Art. 16(c) excepts goods “made to the consumer’s specifications or clearly personalised”. **Uniqueness is not personalisation** — the test is whether the *buyer* specified it. A pre-existing painting chosen from a catalogue of six fails that test. A “governed by PRC law” clause does not help: Rome I Art. 6(2) prevents a choice of law from depriving a consumer of protections that cannot be derogated from under their home law, where the trader directs activity there. Offering EU shipping at checkout is directing activity.

One worldwide 14-day policy over-satisfies the Chinese seven days, removes any need to geo-detect buyers, and avoids a seven-day policy reading as an attempt to shorten the EU right. Commissions are the one genuine exception under both regimes.

4.2 Disclosure

One block of address, phone and email satisfies three regimes at once: the EU Consumer Rights Directive Art. 6(1)(c), the Chinese requirement, and the UK anticipatory duty. Alongside it, SAMR Order 37 Art. 12 prescribes the exact sentence an unregistered individual seller must publish:

个人从事零星小额交易活动，依法不需要办理市场主体登记

That string is quoted verbatim from the rule and must not be paraphrased.

4.3 Privacy

PIPL applies, and the burden is smaller than expected. Processing necessary to conclude and perform the sale needs **no consent checkbox** — a just-in-time notice at the email field is the correct pattern, and consent is reserved for the newsletter. No PRC representative and no regulator filing are required, because those provisions bind handlers *outside* China. The overseas hosting is exempt from the CAC transfer mechanisms both as contract-necessary and on volume.

4.4 Accessibility

4.4.1 The legal position

Calmer than the compliance industry suggests. A one-person operation is almost certainly exempt from the European Accessibility Act as a microenterprise providing services. The stronger argument for the work is commercial: **a blind collector who cannot read the descriptions cannot buy the painting.**

4.4.2 What was built

Table 7: Accessibility work, by criterion

Criterion	What it required	Status
1.4.3 Contrast	Every CTA was 2.67:1	Filled ink control at 11.45:1
1.4.1 Use of colour	No accent reaches 3:1 against body text	Underlines on body links, structurally
2.4.7 / 1.4.11 Focus	A single-colour ring dies over a dark painting	Two-tone ring, works on any ground
2.4.11 Focus not obscured	Sticky nav can hide the focused item	<code>scroll-padding-top</code> ; static on mobile
2.5.8 Target size	Nav bars are not sentences; the inline exception does not apply	48 px via padding
1.1.1 Non-text content	Six paintings, no alt text	Three-layer description per work
2.4.4 Link purpose	Six identical “Buy” links in the links list	Visually-hidden span per control

4.4.3 Describing a painting

The “125-character limit” is folklore — there is none in the HTML specification or in WCAG. The citable number is Cooper Hewitt’s **approximately fifteen words**.

The guidance genuinely disagrees on interpretation: the DIAGRAM Center says never interpret, Cooper Hewitt says interpret when it aids visual understanding. For an artist’s own gallery Cooper Hewitt is right — but interpretation stays textually separable, labelled “Artist’s note”, placed last, and never allowed to replace observation.

On AI-drafted descriptions

Acceptable as a first pass, never as shipped text. A model can report palette, format and apparent handling. It cannot know the true medium, the real dimensions, the title, or the intent — which is exactly what a buyer needs. A wrong description is worse than none, because it burns trust in the channel.

5 The build

5.1 Shape

Plain Node, no framework — which is what the evidence concluded and what the design’s own argument implies. Twenty-eight pages generated from three data files.

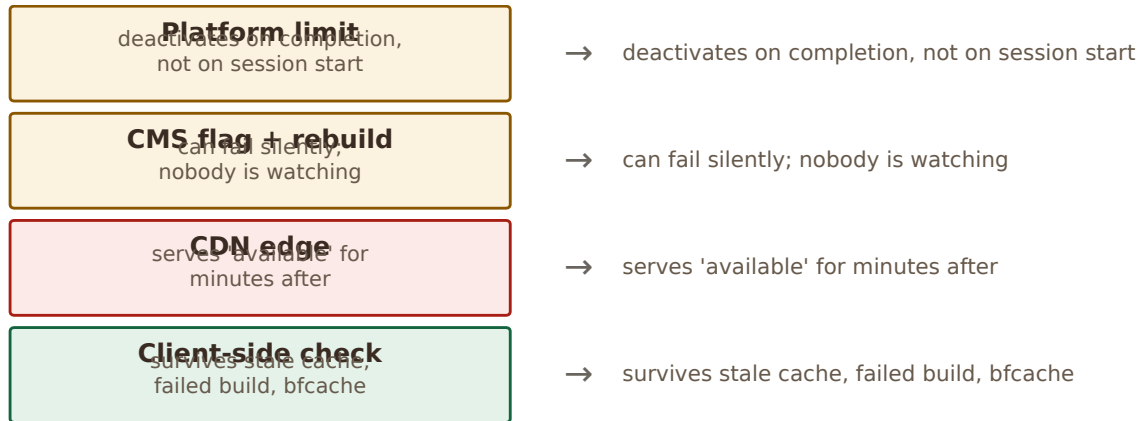
```
src/data/      seller.json   artworks.json  site.json
src/styles/    tokens.css    base.css       gallery.css
src/templates.js
build.js       28 pages, two locales
scripts/      build-fonts   build-images   check-contrast  check-links
```

5.2 The entity switch

One string in `seller.json` moves the whole site between the two commercial routes:

```
"activeEntity": "individual" → "hk-sole-prop"
```

That switches the published legal disclosure, the invoicing language, the checkout provider and the returns basis together. No template knows which entity is active.



No platform in this price range guarantees atomicity. The bottom layer is the cheapest and the only one that survives the other three failing.

Figure 11: Defence in depth. Each layer above the bottom one fails in a way the bottom one survives.

5.3 Overselling

No platform in this price range guarantees atomicity. The client-side availability check is roughly forty lines and is the only layer that survives a stale CDN page, a silently failed rebuild or a bfcache restore.

Alongside it, a published policy costs nothing and settles the residual case: *in the rare event two people buy the same piece at once, the first completed payment stands and the second is refunded in full within 24 hours.*

5.4 Checks that block the build

`check-contrast.mjs` recomputes every token against its worst-case ground. `check-links.mjs` verifies dead links, missing `alt`, missing `width/height`, heading order, landmark counts and hreflang reciprocity.

They have earned their place. Between them they caught a muted grey that passed on white and failed on the darkest wash, work pages shipping with no `<h1>` at all, and a mobile override that made the navigation invisible once the dark bar was adopted.

The limit of automation

Automated testing decides roughly 13–30% of WCAG success criteria and catches almost none of the focus-order and focus-visibility failures that block people outright. The checks

are a floor, not a pass.

6 Open items

Findings had to be implementable to reach this report. These are the places where the evidence beneath a recommendation is thinner than the recommendation, listed so nothing is built on them unchecked.

Table 8: Unresolved, in rough order of cost if wrong

#	Item	Status	What to do
1	Cultural-relics export appraisal	Not established. Chinese government sources unreachable	Confirm a living artist's new work is not 文物 before the first export
2	EU reduced art VAT rates	Unverified. Directive (EU) 2022/542 changed art VAT from 2025	Do not publish per-country rates yet
3	Carrier costs and insurance from China	No verified figures	Needed before the shipping page is final
4	Export declaration for a \$300 painting	Not established	Also determines what supports the bank's FX check
5	Airwallex + HK sole proprietorship	Entity list verified for account opening only	Ask before incorporating
6	CJK webfont strategy	Deferred to a system stack	5–10 MB vs 80 KB; decide before translating
7	Leonardo's hatching angle	Original measurement, not a citation	Present as measured
8	Mona Lisa glaze layer count	Not measurable by XRF; the authors say so	Never write “thirty layers”

6.1 Content still outstanding

The build reports every placeholder. The blocking ones are the six photographs, the titles and descriptions, and the contact details — the email and phone are not optional, they are the consumer-law requirement in Section 4.2.

Appendix: sources and method

Colour. Ratios computed with the WCAG 2 relative-luminance formula. The draft's values were extracted from the PDF content stream rather than sampled from a render, so they are declared values. Figures in this document read the project's live token file.

Fonts. Built with fonttools 4.59.1 from the variable originals; byte counts are measured output, not estimates.

Reachability from mainland China. Measured against a GFW measurement service, with known-blocked controls validating the method before any result was accepted.

Regulatory material. Chinese provisions read from `gov.cn` and `safe.gov.cn`; EU instruments from the Publications Office; US tariff treatment from the HTSUS and the Federal Register. Article numbers are given so each can be checked.

Layout. Verified by headless screenshot at 1440 px and 390 px, not by description. Three defects were found that way and are recorded in the commit history.

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